

whether the trustees are in a position to execute their trusts and powers. Moreover, as the persons to whom leave is given to exercise the powers "are to be deemed the proper persons to exercise them, and may accordingly exercise them," any person dealing with such persons will acquire a statutory title from them, and will not be under any obligation to ascertain that the leave was properly given.

8. **Instrument creating the trust.** — It has been held that, in determining whether land vested in trustees upon trust for sale is subject to the provisions of the Settled Land Act, 1882, the Court must look simply at the instrument which created the trust for sale, and that if at the time when a contract for sale is entered into by the trustees there is no person who, by virtue of the provisions of *that* instrument, is entitled to the income of the money arising from the sale, or of the land until sale, for his life or any other limited period, sect. 63 does not apply, notwithstanding that, under other instruments subsequent to that creating the trust for sale, there may be tenants for life or persons with other limited interests (*a*). The decision is no doubt a convenient one, but it seems to do considerable violence to the language of the Act, as it is conceived that the words "the instrument or instruments under which the *trust* arises" cannot be properly confined to the instrument or instruments under which the *trust for sale* arises, but must have been intended, and should be construed to extend to all the instruments which together create the *whole trust* affecting the property.]

[(*a*) *Re Earle and Webster's Contract*, 24 Ch. D. 144.]